

NEGOTIATED WHOLESALE RATES AGREEMENT

WORLDWIDE MARKET

EASIA TRAVEL

Phet Anong Phonsavath (Mrs.)

Country Director

Address: Ban Visoun, Unit07, P.O BOX 095 Blvd, Luang Prabang, Laos P.D.R

Mobile +856 7 1213136

E-mail: anong@easia-travel.com

Homm Souvannaphoum Luang Prabang (known herein as “Hotel”) is pleased to appoint **Easia** (known herein as the “Business Partner” or “Agency”) for the marketing and sale of room nights to clients in **Worldwide Market** for the period **01 April 2025 to 31 March 2026**

Room Types	Sqm.	Unit	NET Rate (USD) Per Room Per night	
			01 Apr – 30 Sep 2025	01 Oct – 31 Mar 2026
Garden Wing (King/Twin)	34	16	170	250
Garden Wing – Pool View (King/Twin)	34	4	190	270
Residence Double	29	1	170	250
Champa Suite	39	1	240	320
Laos Suite	45	1	290	370
Maison Suite	68	1	320	400
Extra Adult with extra bed			USD 60 per person per night inclusive of breakfast	
Extra Child age 4 – 11.99 years old with extra bed			USD 30 per child per night inclusive of breakfast	
Extra Child age below 3.99 years old			Complimentary (sharing same bed with parents)	

FESTIVE/PEAK SEASON

No surcharge for any bookings which have arrival dates during 24 Dec 2025 – 05 Jan 2026 (inclusive)

TERMS & CONDITIONS

- The above rates are quoted in US Dollars, based on Single/Double occupancy and per room per night basis.
- The above rates are net inclusive of all taxes, services charges and non-commissionable.
- The above rates are inclusive of breakfast for 2 persons.
- Complimentary in-room wireless internet in all room types is provided.
- Maximum 2 adults and one child below 11.99 years old or maximum 3 adults (with one extra bed) are allowed.
- In the event of a change in government taxes or the introduction of any additional taxes, rates will be adjusted accordingly.
- Extra bed can be provided in all room types, except Residence Double.

TRANSPORTATION

Airport Transfer (15 minutes per way)

- Minivan USD 15 net per car per way, up to 4 persons with maximum 4 luggage
- Van USD 25 net per car per way, up to 8 persons with maximum 8 luggage

Train Station Transfer (30 minutes per way)

- Minivan USD 25 net per car per way, up to 4 persons with maximum 4 luggage
- Van USD 35 net per car per way, up to 8 persons with maximum 8 luggage

Transfer prices are subject to change with an advance notice to the Partner of at least seven (7) working days. You are encouraged to check with the Resort on prices and availability from time to time. We assume no liability for any discrepancies arising from or in connection with the failure of the Partner to make adequate enquiries or for any variations imposed by the transportation company.

CONTRACTED OFFERS

Early Bird Offer	
Applicable for stay: Low Season 01 Apr 2025 – 30 Sep 2025	30% discount per room per night when book minimum 14 days prior to arrival Offer is not combinable with Stay More Pay Less Offer
Applicable for stay: High Season 01 Oct 2025 – 31 Mar 2026	25% discount per room per night when book minimum 14 days prior to arrival Offer is not combinable with Stay More Pay Less Offer
Stay More Pay Less Offer	
Applicable for stay: Low Season 01 Apr 2025 – 30 Sep 2025	30% discount per room per night when stay a minimum 3 consecutive nights Offer is not combinable with Early Bird Offer
Applicable for stay: High Season 01 Oct 2025 – 31 Mar 2026	25% discount per room per night when stay a minimum 3 consecutive nights Offer is not combinable with Early Bird Offer
Honeymoon/Wedding Anniversary Offer	
Applicable for stay: 01 Apr 2025 – 31 Mar 2026	Stay a minimum 3 consecutive nights, receive below benefits: • Complimentary Laos Set Dinner at Elephant Blanc for two (2) persons • Complimentary Sunset drink for two (2) persons at Pool Bar • A special flower decoration in the room • Marriage Certification is required to present Offer is combinable with Early Bird Offer and Stay More Pay Less Offer

CANCELLATIONS & NO SHOW

The Business Partner shall notify the Hotel in writing of any cancellation or changes to the confirmed reservations subject to the following:

Stay Period	Days of Cancellation	Cancellation Charge
01 Apr 25 – 31 Mar 26 Except Peak Season	21 days prior to arrival date	50% of total room revenue will be applied
	14 days prior to arrival date	100% of total room revenue will be applied
24 Dec 25 – 05 Jan 26	30 days prior to arrival date	100% of total room revenue will be applied
01 Apr 25 – 31 Mar 26	No Show or Shorten Stay	100% of total room revenue will be applied

ALLOTMENT & RELEASE

The Property reserves the right to request return of allocations for high demand periods subject to the Property providing a written notification. In the case of selling out respective room categories and buy out requests, the Property will immediately send a STOP SALES notice accordingly. After 72 hours, the Property will not honor any further reservations.

Villa categories	All Stay Dates (except 24 Dec 25 – 05 Jan 26)
Release	7 days
Garden Wing King	Free Sale
Garden Wing Twin	Free Sale

* Other room categories are 'On Request' and subject to availability.

GROUP RATES

Offers herein are not applicable to groups, which are defined as bookings of a minimum of 10 rooms. For confirmation of reservations by the Property for one (1) to nine (9) rooms, please refer to conditions of Allotment and Reservations as listed in this contract.

VOUCHERS

All arrivals must be accompanied by the appropriate vouchers issued by the Business Partner upon check-in, otherwise regular published rates will be chargeable.

CHECK IN & OUT TIMES:

- Check in time is 14:00 hrs (local Laos time) and check out time is 12:00 hrs (local time).
- The Hotel may allow a late check-out subject to room availability and shall incur the following charges:
 - For prepaid bookings – 12:00 pm to 6:00 pm at 50% of contract rate – beyond 6:00 pm at full contract rate.
 - At guests' request during stay – 12:00 pm to 6:00 pm at 50% of published rate – beyond 6:00 pm at full published rate.
- In the event that the late check-out cannot be extended in the guestroom that the guests are staying in, the Hotel shall reserve the right to make the alternative arrangements subject to room availability.
- The Hotel reserves the sole right and discretion to grant any guest a late check out at no charge.

PAYMENT TERMS:

Full Pre-payment: Where prior credit arrangements have not been granted by the Hotel, full pre-payment for all bookings is required at least fifteen (15) days before the guests' arrival, otherwise the rooms not guaranteed by full pre-payment will be automatically cancelled and released by the Resort.

Credit Arrangement: The Hotel may extend fifteen (15) days credit arrangement subject to the written approval of the Resort. This credit arrangement does not affect the terms relating to deposits and cancellations under this agreement. Under this option, the Business Partner will submit to the relevant completed Resort Credit Application Form for the Resort's approval.

Where credit arrangement is granted to the Business Partner, the Resort will invoice with credit terms requiring payment within thirty (30) days of the date of such invoice. Any credit terms are subject at all times to the credit limit which is determined by the Resort. The Resort reserves the right to revoke such credit arrangement in the event of failure by the Business Partner to make timely payments. Late payment shall be subject to late payment charges at the interest rate of twenty per cent (20%) per annum. In the event of incorrect billing or disputed totals, a grace period of seven (7) days is extended from the date of payment due to facilitate collaboration and subsequent settlement. The Business Partner shall advise the Hotel immediately of such claimed billing irregularities.

BANK ACCOUNT DETAILS

All payments shall be paid to the following bank account:

Bank: Banque Pour Le Commerce Exterieur Lao

Account name: SOUVANNAPHOUM HOTEL CO.,LTD

Account #: 050.11.01.000.73693.001 (USD)

Account #: 050.11.00.000.73693.001 (KIP)

Swift Code: COEBLALA

As confirmation of acceptance, kindly return the duplicated copy of the contracts to us, duly signed by 15 Dec 2024, otherwise the contract offer will be withdrawn.

HOMM SOUVANNAPHOUM LUANG PRABANG



Signature: _____

Name: Suphot Wongnangsue (Mr)

Title: Hotel Manager

Date: 22-Nov-24

EASIA TRAVEL



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Phetanong PHONSAVATH

Signature: _____

Name: Phet Anong Phonsavath (Mrs.)

Title: Country Director

Date: 22-Nov-24

GENERAL TERMS & CONDITIONS

APPLICABILITY:

The above rates are applicable for reservations made by the Business Partner. Should any guests be paying on their own account, the regular published rates shall be chargeable.

GREEN IMPERATIVE FUND:

Banyan Group is committed to protecting the environment and uplifting the communities around us. The Green Imperative Fund works on the basis of guest contributions of USD1nett per room per night. This amount will automatically billed to our guests although they are at liberty to opt out of the program anytime during their stay.

ON-LINE RESTRICTIONS:

Negotiated rates are not for sale via online channels across the worldwide web, unless they are parity to the Resort's "Best Available Rates" program. In addition, negotiated rates that are packaged with air content and other sightseeing arrangements must be sold higher than the Resort's "Best Available Rates" program. The Business Partner may not sell or resell on these rates to a third party who uses the internet as a medium of advertising/distribution without the expressed prior written consent of the Resort. If the Business Partner breaches the obligations above, the Resort reserves the right at its option to either withdraw the rates or terminate this contract immediately.

CONFIDENTIALITY:

The Business Partner shall ensure that the terms and conditions of this agreement including the rates herein are kept strictly confidential and will not disclose the same to any third party without the prior written consent of the Hotel. This term shall survive the termination of this agreement.

INDEMNITY:

During the term of this agreement, the Business Partner agrees with the Resort to indemnify, keep indemnified and to hold harmless the Hotel from and against any and all loss, damage, expenses, claims or liability (whether criminal or civil) suffered (and including, without limitation, legal fees and costs incurred) by the Resort resulting from a breach of this agreement by the Business Partner including (a) any act, neglect or default of the Business Partner and its employees and agents and/or (b) any breach in respect of any matter arising out of this agreement resulting in the successful claim by any third party.

BROCHURE CONTRIBUTION AND PRESENTATION:

In the event of a brochure contribution by the Business Partner, the Hotel may make payment of such cost incurred on a full contra basis against its invoices to the Business Partner for the period stipulated by the Hotel. All **brochure contributions shall be subject to the prior agreement and written approval of the Hotel at the Hotel's sole discretion to do so.**

The Business Partner will feature the Hotel in its tour program and marketing collaterals including but not limited to brochure as a top tier resort destination to its clients and include photograph(s) of the Hotel where appropriate with the written approval of the Hotel. Copies of such marketing materials including information on the website must be made available to the Hotel upon publication. The Business Partner shall obtain the prior written consent of the Hotel in respect of all advertising and promotion material including information of the same on any website prior to any proposed insertion, amendments or publication in any media. During the term of this agreement, the Hotel reserves the right to terminate this agreement at any time should the Business Partner misrepresent any information pertaining to the Resort in any media including but not limited to advertising materials such as brochures and press releases, which in the Hotel's view is damaging to the image of the Hotel.

EXCLUSION OF LIABILITY:

The Hotel assumes no liability to the Business Partner or its clients arising out of or in connection with any agreement, reservations, bookings, arrangements, representations or communication between the Business Partner and its clients. Nothing herein shall be deemed to create a contract between the Resort and the Business Partner's clients or their client's guests or occupants.

FORCE MAJEURE:

If, for any reason beyond the control of the Hotel, including without limitation the generality of the following: any act of God, fire, floods, landslides, explosions, war, rebellion, riots, civil commotions, strikes or labour stoppages, act of public enemies, embargoes, epidemics, accidents or mechanical failures, refusal, act of government including suspension or cancellation by any government authority of any licenses, permits or authorization which the Resort has need of to operate or any other event beyond the reasonable control of the Resort, the Resort shall not have any liability to the Business Partner or its guest(s) for any failure, default or delay in the performance of this agreement.

INTELLECTUAL PROPERTY RIGHTS:

The Business Partner acknowledges that the trademark, trade name, service mark or copyrights associated with the names "**Banyan Group**", and the **HOMM** logo, together with all rights in any and all slogans, derivations, trade secrets, know-how and all other proprietary rights associated with those names and the logo (collectively referred to as the "Trademarks") are the exclusive property of the Hotel and its licensors and undertakes:

- That nothing in this agreement gives the Business Partner any claim to or rights in respect of the Trademarks.
- Not use the Trademarks as all or part of its legal name or any trade or assumed name under which the Business Partner does business.
- To obtain the Hotel's consent before publishing any advertising materials or implementing any advertising programs of its own which may mention the Banyan Tree name or include the use of the Trademarks.
- To procure that none of its employees or agents including third party travel agents infringes on the Trademarks or uses the Trademarks without the prior written approval of the Hotel.
- To immediately inform the Hotel if the Business Partner has notice of any potential trademark infringement by any of its employees or agents including third party travel agents.

To assist the Hotel and/or its licensors in the enforcement of its rights against any Trademark infringers.

NO PARTNERSHIP:

This agreement shall not be construed as creating partnership, joint venture, agency or other relationship between the parties other than the contractual relationship expressly provided for in this agreement.

TERMINATION OF CONTRACT:

The Hotel may terminate this agreement at any time subject to giving at least thirty (30) days prior written notice of such termination to the Business Partner

VARIATION & AMENDMENTS:

Except where expressly provided for in this agreement, no modification, amendment or variation of this agreement shall be effective or binding unless agreed by the parties mutually in writing. Any such written modification, amendment or variation shall be deemed to be a part of the agreement.

SEVERABILITY:

If any one or more of the terms and conditions contained herein shall be deemed invalid, unlawful or unenforceable in any respect under any applicable law, it is severed for that jurisdiction. The validity, legality and enforceability of the remaining provisions of the same shall not in any way be affected or impaired.

ENTIRE AGREEMENT:

This agreement constitutes the entire agreement (including any written amendments and variations issued by the Hotel from time to time) between the parties and supersedes all previous communications, understandings, negotiations, arrangements and agreements, whether oral or written, between the parties with respect to the subject matter of this agreement. There are no collateral agreements or precedent representations, agreements warranties or conditions except as specifically set forth herein.

GOVERNING LAW:

This agreement shall be governed by and construed in accordance with the laws of Laos. You hereby submit irrevocably to the non-exclusive jurisdiction of the Courts of Laos. Nothing in this clause shall limit our right to bring or commence proceedings against you in any other court of competent jurisdiction.